

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 27, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Allen. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Ms. Williams moved to approve Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 13, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in a portion of the Northeast Quarter of the Southeast Quarter of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Scenic Development (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard). Jim Flesher, Planning Services Department, stated the proposed annexation is pursuant to a petition requesting annexation submitted by Scenic Development, property owner, and that requirements and compliance of annexation conditions contained in state statutes had been met. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Mayor Kaysen opened a public hearing to receive public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council's Business Ready Community, Community Enhancement Grant Program, for the Cahill Park Universally Accessible Playground Project. Cindy Schneider, Grants Manager, advised the project will include the demolition and removal of current playground equipment at the park and explained that a universally accessible playground has features that allow accessibility and use by all able and disabled children, adults and caregivers. She reviewed the purpose and requirements of the Community Enhancement Grant Program, noting that Cheyenne does not currently have this type

of playground in the community; advised the project is estimated to cost \$420,000.00 with the grant request in the amount of \$210,000.00, and stated the City will match the grant request amount through in-kind services, community facility fees and a recreation mill grant that has already been approved for the project. Ms. Schneider also reviewed the time frames involved with the grant process. Rick Parish, Parks and Recreation Director, distributed a project summary sheet (on file with City Clerk's office); provided a brief history of efforts made toward implementation of a universally accessible playground, and explained why Cahill Park was selected as the location. Speaking in support of the playground project were Monica Puente, former Leadership Cheyenne participant, and JoAnne Weigand and Anne Picot, Mayor's Council for People with Disabilities. Comments included whether Cahill Park was the best location for the playground. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Amending Section 6.04.020, Definitions, of Chapter 6.04, Definitions, Administration and Enforcement; Creating a new Section 6.08.190, Community Cat Initiative, of Chapter 6.08, Animal Care and Control Regulations Generally; and Amending Section 6.20.020, Animal Impoundment, of Chapter 6.20, Impoundment, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming. Mayor Kaysen requested Ms. Broyles, as sponsor of the ordinance, provide an explanation of the purpose of the ordinance. Ms. Broyles advised the ordinance would allow for a more effective approach of addressing the community's current homeless cat population and will involve a humane process of trapping, neutering, and releasing the cats, resulting in a lower population of community cats. Britney Wallesch, Executive Director, Black Dog Animal Rescue, spoke in support of the ordinance and use of humane "trap and return" programs. Reporting for Public Services Committee, Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending Section 12.04.010, Obstructions on Streets, and Section 12.04.080, Construction and Repair - Permits Required - Fees - Exception, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming. Ms. Broyles, as sponsor of the ordinance, briefly explained the ordinance would provide for clarification regarding the placing of storage containers and roll-offs within City rights-of-way and reviewed elements of the proposed ordinance involving a permit process (with a fee); landscaping projects/materials; time limits, and notification (permit posting) requirements. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Upon inquiry regarding the proposed 72 hour time limit for obstructions involving landscaping materials, Rob Geringer, City Engineer, advised the time limit will provide for proper protection for sediment control and run-off concerns. He advised this could be construed as an enforcement issue if landscaping obstructions extend beyond the time limit. Discussion followed on the length of time needed to complete certain landscaping projects. Dr. Rinne moved to amend paragraph C.1. of Section 12.04.010 to insert the words "without a permit" so the subsection would read as follows, seconded by Mr. Cook: "The period of obstruction shall not exceed seventy-two (72) hours without a permit;". Comments followed on the initial intent of the ordinance, which does not have a permit process applicable to landscaping materials; reasonable time limit regarding landscaping materials as obstructions, and concerns with displaying a permit if a permit is required for landscaping materials. Motion to amend carried. Voting "yes" -- Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Mr. Luna, Mr. Valdez and Mayor Kaysen. [City Clerk note: Announcement of voting results reflected the motion

failed, however, upon subsequent review of votes cast (following closure of the meeting), it was confirmed the motion to amend carried.] Ms. Broyles moved to amend by substitute (dated Oct. 27, 2014), seconded by Mr. Brown. Changes contained in the proposed substitute were reviewed and, upon inquiry, Dan White, City Attorney, clarified language shown as a “strike through” in Section 12.04.080 B in the substitute had also been included in the initial ordinance. Motion to amend carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Luna voting “no”. [City Clerk note: The motion to amend by substitute ordinance replaced the initial ordinance, as amended.] Discussion followed and included comments in support as well as opposition to the ordinance. Topics included: Current City Code obstructions in rights-of-way restrictions; enforcement concerns; permit/fee requirement; length of the proposed ordinance and various violation sections, and purpose of the ordinance, which is to address how long storage containers and landscaping materials may be located on streets (public rights-of-way). Upon inquiry, Mr. White advised the ordinance structure format was based on an ordinance considered by City Council a few years ago, and at the current time it is unlawful to have obstructions of this type in the public rights-of-way. He explained the ordinance would provide for the obstructions under certain conditions, and include affiliated violations, and would allow people to use rights-of-way for private uses on a limited basis. Motion to approve on second reading, as amended by substitute ordinance, failed. Voting “yes” -- Mr. Brown, Ms. Broyles, Dr. Rinne, and Mayor Kaysen. Voting “no” -- Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land situated in a portion of the Northeast Quarter of the Southeast Quarter of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Scenic Development (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1 Agricultural and Rural Residential to NR-3 Neighborhood Residential – High Density for a parcel of land situated in a portion of the Northeast Quarter of the Southeast Quarter of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Scenic Development (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5622)

RESOLUTION - Granting an exception for development of small wastewater treatment systems pursuant to the 201 Agreement for Cheyenne Power Park, a planned unit development, located generally within the NW1/4 of Section 29, T.13N., R.66W., of the 6th P.M., Laramie County, Wyoming. Gary Hickman, Cheyenne-Laramie County Health Department, Division of Environmental Health, briefly explained the 201 Agreement and provisions within the Agreement for granting an exception to requirements as affiliated with the resolution. James Perrott McNeil spoke in opposition to development of any land or any zone changes on Union Pacific (railroad) property. Casey Palma, Steil Surveying Services, agent for the property owner, referenced information that had been previously provided regarding approval of the hardship exception request to allow for 11 small septic system permits (one per lot) to be issued for the Cheyenne Power Park, located south of Cheyenne, for development purposes, and requested approval of the resolution. Mr.

Shanor reported there was no recommendation on the item from Public Services Committee. Mr. Shanor moved to adopt, seconded by Mr. Luna. Mr. Shanor moved to amend by substitute resolution, seconded by Dr. Rinne. It was advised the proposed substitute addresses concerns that had been raised relating to “land locking” growth of the City by adding Condition c. under Section 2 of the resolution to read as follows: “If, and when, conditions for annexation exist for any of the properties governed by the Cheyenne Power Park PUD, the owner or owners of each such property shall seek annexation into the municipal boundaries of the City of Cheyenne.”. Mr. Hickman explained that whenever permits are issued it includes wording that when City sewer services become available, the landowner would be required to hook-up. Discussion followed and included the following topics: Whether the amendment, the exception, and 201 Agreement generally “runs” with the property or with the current or future owner of the property; party responsible for acquiring the State Engineer’s permit to drill water wells; lot sizes relative to septic systems; whether permits are recorded with the County Clerk; annexation; property covenants; maintenance of 201 permits through the Environmental Health office; potential scenarios if wells/septic systems fail, and enforcement of the 201 Agreement. Upon inquiry during discussion, Dan White, City Attorney, and Mr. Hickman provided information available relating to permits; hardship exemptions; septic system criteria; whether permits “run” with the property itself or with the property owner, and the 201 Agreement, which deals with septic/sewage systems, not water wells. Motion to amend carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Williams voting “no”. Main motion, as amended by substitute, carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Williams voting “no”. (#5623)

[CA] RESOLUTION - Authorizing the submission of a Business Ready Community, Community Enhancement Grant Application to the Wyoming Business Council for the Cahill Park Universally Accessible Playground Project -- referred to Finance Committee (sponsors -- Mr. Brown, Ms. Broyles and Mr. Luna).

[CA] RESOLUTION - Supporting the Cheyenne Regional Airport Board in the submission of a Business Ready Community, Community Readiness Grant Application to the Wyoming Business Council for the new Airport Terminal Project -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Allen).

[CA] Preliminary Plat for Carter Cottages, a replat of portions of Tracts 245, 246, 247, 248 and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30). Motion (per Consent Agenda) to acknowledge the Planning Commission’s recommendation to approve carried.

[CA] Contract between the City of Cheyenne, Transit Division, and Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older (Title III-B Program Grant). Motion (per Consent Agenda) carried. (#6255)

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services. Motion (per Consent Agenda) carried (amount not to exceed \$50,000.00). (#6256)

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Cheyenne Police Department, for a Grant Award from the United States

Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Programs Directorate, State Homeland Security Grant Program (SHSP) Fiscal Year 2014, for Region 7 Bomb Team, in the amount of \$20,000.00 -- referred to Finance Committee.

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Cheyenne Police Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHSP) Fiscal Year 2014, for Law Enforcement and Terrorism Prevention-Oriented Activities (LETPA), in the amount of \$41,373.65 -- referred to Finance Committee.

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Fire and Rescue Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHSP) Fiscal Year 2014, for the Region 7 State Regional Emergency Response Team, in the amount of \$100,000.00 -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6131 between the City of Cheyenne, Public Works Department, and Monument Builders, Inc., of Cheyenne, Wyoming, for the Household Hazardous Waste Facility, Sitework, and Underground Storage Tank Replacement Project (State & Local Grants) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5975 between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, Wyoming, for the East Pershing Boulevard/19th Street/Converse Avenue Intersection Improvements Project to partially release retainage (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-10-15 for furnishing one new 2014-2015 wheel loader mounted snow blower from Titan Machinery, Casper, Wyoming, for the City of Cheyenne, Street and Alley Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid in an amount not to exceed \$94,638.00).

[CA] Consideration of Bid #R-12-15 for furnishing two new vehicles for the City of Cheyenne, Youth Alternatives and Parking Divisions, from Spradley Barr Motors, Cheyenne, Wyoming (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid in an amount not to exceed \$43,294.00).

[CA] Consideration of Bid #R-15-15 for the sale of surplus property described as Lot 1, 2 and 3, Block 660, Re-plat of a part of South Cheyenne, City of Cheyenne, Laramie County, Wyoming (located at 522 Van Lennen Avenue) -- referred to Finance Committee.

[CA] Consideration of Bid #R-16-15 for the sale of surplus property described as All of Lot 8, Block 348, Original City of Cheyenne, Laramie County, Wyoming (located at 1700/1710 Snyder Avenue) -- referred to Finance Committee.

[CA] Consideration of Bid #R-11-15 for furnishing one new 2014-2015 small dozer (CAT D5K5-2 LGP or equal) for the City of Cheyenne, Landfill Division (Solid Waste Management) -- referred to Finance Committee.

Re-Appointment of Judith A. Lane, to the Cheyenne Housing Authority Board. Mr. Brown moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of the Appointments of Richard C. Loveless Jr. and Wallace Erickson, to the Cheyenne Downtown Development Authority Board (DDA), to be confirmed November 10, 2014.

Announcement was made of a Public Hearing to be held November 10, 2014 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for a bar and grill liquor license application filed with the City Clerk’s Office for JSKB, Inc. d/b/a Pizzeria Venti, 112 East 17th Street, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held November 10, 2014 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk’s Office for Loveless Investments LLC d/b/a Camille’s Gumbo House, 1617 Capitol Avenue, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held November 10, 2014, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to receive public comments regarding the sale of a tract of land owned by the City of Cheyenne, located at 206 West Lincolnway, Cheyenne, Wyoming, legally described as the East 22 feet of Lot 7, Block 390, Original City, to the Children’s Museum of Cheyenne, Inc., a Wyoming corporation, for economic development purposes pursuant to W.S. § 15-1-112(b)(i)(D), and in exchange for consideration as provided by Section 5 of the Project Development and Administration Agreement entered into between the City and the Children’s Museum of Cheyenne, Inc., dated October 6, 2014. (City Contract # 6242).

Under other business, Ms. Williams thanked local police and sheriff officers for their attendance at a neighborhood watch meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:25 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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